BRAND AMBASSADOR, SYNCHRONIZATION AND COMMERCIAL JINGLE AGREEMENT

THIS BRAND AMBASSADOR, SYNCHRONIZATION AND COMMERCIAL JINGLE AGREEMENT (this "Agreement") is dated this 12th day of November, 2026 (the "Effective Date"),

BETWEEN:

1. KIBO BEVERAGES EAST AFRICA LIMITED, a company duly incorporated in Kenya under the Companies Act, 2015, of Industrial Area, Enterprise Road, P.O. Box 30911-00100, Nairobi, Kenya (hereinafter referred to as the "Company" or "Sponsor", which expression shall include its affiliates, parent companies, advertising agencies, and assigns);

AND

2. JOHN DOE, an individual Kenyan recording artist, vocalist, and songwriter professionally known as "John Doe", of P.O. Box 45102-00100, Nairobi, Kenya (hereinafter referred to as the "Talent" or "Artist").

RECITALS

A. WHEREAS, the Company manufactures, markets, and distributes energy drinks, carbonated soft drinks, flavoured bottled waters, and lifestyle beverages across the East African Community under the "Kibo Volt" trademark and related brands.

B. WHEREAS, the Company wishes to appoint the Artist as a regional Brand Ambassador and commission an original musical theme track (the "Campaign Anthem") for synchronization in television, radio, digital, and out-of-home point-of-sale promotions.

C. WHEREAS, the Artist has agreed to render the endorsement services, grant synchronization and mechanical licenses, and observe the sector exclusivity covenants upon the terms and conditions hereinafter appearing.

NOW IT IS HEREBY AGREED as follows:

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1. DEFINITIONS

1.1 "Agency Deduction" means a flat fifteen percent (15%) administrative, talent coordination, and third-party studio facilitation charge deducted by the Company's appointed creative agency from the Headline Fee prior to disbursement to the Artist.

1.2 "Campaign Anthem" means the sixty-second (60-second) musical composition and master sound recording created, written, and vocally performed by the Artist for the "Kibo Volt Rush" campaign, including all instrumental stems, radio edits, and acapella versions thereof.

1.3 "Cooling-Off Period" means the six (6) month period immediately following the expiration or termination of the Initial Term.

1.4 "Headline Fee" means the nominal gross package figure of Kenya Shillings Four Hundred and Fifty Thousand (KES 450,000) subject to the deductions and payment conditions set out in Clause 4.

1.5 "Net Remittance" means the Headline Fee less the Agency Deduction, less any excess studio overage or styling reconfiguration expenses incurred during production, and less applicable statutory taxes.

1.6 "Restricted Beverage and Hospitality Sector" means any manufacturer, distributor, bottler, or brand owner of energy drinks, carbonated soft drinks, fruit juices, bottled water, isotonic sports drinks, coffee, tea, alcoholic beverages, spirits, beer, ready-to-drink mixers, or any nightclub, concert tour, or music festival whose title or platinum sponsor operates in any of the foregoing categories.

1.7 "Territory" means the East African Community, comprising Kenya, Uganda, Tanzania, Rwanda, Burundi, South Sudan, and the Democratic Republic of Congo, together with worldwide digital and social media access via the internet.

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2. APPOINTMENT AND DELIVERABLES

2.1 Appointment. The Company hereby appoints the Artist as a Brand Ambassador for "Kibo Volt" in the Territory for the Initial Term, and the Artist agrees to perform the services specified in Schedule A (the "Deliverables") diligently and in compliance with the Company's creative briefs.

2.2 Scheduling and Reshoots. The Artist shall make himself available for studio recording, photography, and video shoot days upon seventy-two (72) hours' written or WhatsApp notice from the Company's creative agency. Should the Company in its discretion require re-shoots, vocal re-takes, or alternate lyric versions of the Campaign Anthem to suit regional markets within the Territory, the Artist shall provide up to three (3) additional studio or shoot days at no additional talent fee.

2.3 Final Cut and Creative Control. While the Company may consult the Artist regarding styling, the Company shall have sole and final editorial control and approval over the final cut, audio mix, colour grading, captioning, and placement of all advertisements containing the Campaign Anthem and the Artist's likeness.

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3. TERM AND UNILATERAL EXTENSION OPTION

3.1 Initial Term. This Agreement shall commence on the Effective Date and shall continue for an initial period of six (6) months expiring on 11th May, 2027 (the "Initial Term").

3.2 Company Option to Extend. The Artist hereby grants to the Company an irrevocable, unilateral option to extend the Initial Term for one (1) additional period of six (6) months (the "Option Period") on the same terms and for a repeat Headline Fee of KES 450,000 (subject to the Agency Deduction), exercisable by the Company giving written notice to the Artist at any time prior to the last day of the Initial Term.

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4. COMPENSATION, DEDUCTIONS AND NET-90 PAYMENT SCHEDULE

4.1 Headline Fee and Net Remittance Basis. Subject to the Artist's full and punctual performance of all Deliverables and compliance with Clause 6, the Company shall pay the Artist the Headline Fee of KES 450,000 calculated strictly on a Net Remittance basis after subtracting the fifteen percent (15%) Agency Deduction (KES 67,500) and any unapproved studio or wardrobe overruns.

4.2 Installment Schedule (20% / 80% Net-90). The Net Remittance shall be payable in two (2) installments as follows:

(a) Initial Mobilization Tranche: Twenty percent (20%) of the Net Remittance, within thirty (30) days after execution of this Agreement and delivery of the master audio files of the Campaign Anthem; and

(b) Final Completion Tranche: Eighty percent (80%) of the Net Remittance, payable ninety (90) days after the formal completion of the last Deliverable in Schedule A and the Company's internal campaign wrap audit, conditional upon the Artist providing a valid Kenya Revenue Authority (KRA) Tax Compliance Certificate and an ETIMS-compliant invoice.

4.3 No Royalties or Residual Payments. The Net Remittance shall constitute full and final buy-out compensation for all services and licenses granted under this Agreement. The Artist shall not be entitled to any broadcast residuals, synchronization royalties, mechanical royalties, Skiza ringback shares, or digital streaming revenue arising from the Company's promotional use of the Campaign Anthem.

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5. INTELLECTUAL PROPERTY AND CROSS-CLAUSE USAGE OVERRIDE

5.1 Underlying Composition Ownership. Subject explicitly to Clause 5.3 and Clause 5.4 below, the Artist shall retain nominal authorship and copyright ownership of the underlying musical composition (lyrics and melody) of the Campaign Anthem pursuant to the Copyright Act (Cap. 130, Laws of Kenya).

5.2 Exclusive Synchronization and Master License. The Artist hereby grants to the Company an exclusive, irrevocable, royalty-free, sub-licensable license throughout the Territory during the Initial Term (and any Option Period) to reproduce, synchronize, distribute, broadcast, adapt, and publicly perform the Campaign Anthem and the Artist's name, voice, photograph, and likeness across all television, radio, digital, social media, matatu screen networks, and outdoor billboard media.

5.3 Perpetual Digital Archive and Showreel Rights. Upon expiration of the Initial Term (or Option Period, if exercised), the Company shall cease commissioning new traditional television and roadside billboard placements; HOWEVER, the Company and its advertising agencies shall have the irrevocable, royalty-free right in perpetuity throughout the universe to retain, host, stream, and display all Campaign videos, social media posts, and the Campaign Anthem on YouTube, Instagram, TikTok, Facebook, corporate websites, trade show presentations, and agency award submissions without further payment to the Artist.

5.4 Commercial Holdback Override. Notwithstanding Clause 5.1 or anything to the contrary contained in this Agreement, the Artist shall not, during the Initial Term, any Option Period, and for a period of twenty-four (24) months thereafter, release, perform live at ticketed concerts, upload to digital streaming platforms (including Spotify, Boomplay, Apple Music, or Mdundo), register for Skiza Tunes, or license to any third party the Campaign Anthem or any musical composition containing a substantially similar melody, hook, or vocal cadence without the Company's prior written consent.

5.5 Waiver of CMO Claims Against Sponsor. The Artist hereby waives any right to claim or collect public performance or broadcast royalties from the Company, its media buying agencies, or broadcasting stations via MCSK, KAMP, or PRISK in respect of paid advertising broadcasts of the Campaign Anthem.

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6. BROAD SECTOR EXCLUSIVITY AND POST-TERM COOLING-OFF

6.1 Sector-Wide Non-Compete. During the Initial Term (and any Option Period) and throughout the six (6) month Cooling-Off Period thereafter (being twelve (12) months in total at minimum), the Artist shall not anywhere in the Territory:

(a) endorse, promote, wear branded merchandise of, or appear in advertising for any entity within the Restricted Beverage and Hospitality Sector; or

(b) visibly consume or display any beverage product other than "Kibo Volt" in any music video, Instagram post, TikTok video, or public appearance made by the Artist.

6.2 Restriction on Sponsored Live Gigs. During the Initial Term and the Cooling-Off Period, the Artist shall not perform as a headline or supporting act at any club night, campus concert, or music festival whose title sponsor, pouring-rights partner, or stage sponsor operates in the Restricted Beverage and Hospitality Sector, unless the Artist obtains a written waiver from the Company's Marketing Director at least thirty (30) days prior to the event.

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7. MORALITY, CONDUCT AND CLAWBACK

7.1 Subjective Conduct Standard. The Artist acknowledges that the value of this partnership depends upon the Artist maintaining a positive public image aligned with the Company's corporate brand values. If at any time during the Initial Term or Cooling-Off Period the Artist is involved in any public controversy, social media backlash, arrest, or behaviour which, in the Company's sole and absolute opinion, reflects unfavourably upon the Company or diminishes the commercial value of the Artist's association with "Kibo Volt", the Company may terminate this Agreement with immediate effect by written notice.

7.2 Forfeiture and Refund on Morality Termination. Upon termination under Clause 7.1, the Company shall be relieved of any obligation to pay any unpaid balance of the Net Remittance, and the Artist shall within fourteen (14) days refund to the Company fifty percent (50%) of all sums previously paid to the Artist hereunder.

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8. WARRANTIES AND UNILATERAL INDEMNITY

8.1 Artist Warranties. The Artist warrants and represents that: (a) he is free to enter into this Agreement and is not bound by any conflicting brand or recording agreement; (b) the Campaign Anthem is wholly original and free from any third-party samples, interpolations, or producer claims; and (c) he holds all necessary consents from any session musicians or vocalists.

8.2 Artist Indemnity. The Artist shall fully indemnify, defend, and hold harmless the Company, its directors, officers, and advertising agencies from and against any and all claims, demands, losses, regulatory fines, agency re-production costs, and legal fees (on a full advocate-and-client basis) arising out of any actual or alleged breach by the Artist of this Agreement.

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9. CANCELLATION AND FORCE MAJEURE

9.1 Campaign Suspension. The Company reserves the right to pause, suspend, or cancel the Campaign at any time due to changes in marketing strategy, excise duty adjustments, or supply chain disruptions. In the event of cancellation for convenience prior to campaign launch, the Company's sole liability shall be the Initial Mobilization Tranche (20%) under Clause 4.2(a), and no further sums shall be payable, though the Company shall retain its archive license under Clause 5.3.

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10. CONFIDENTIALITY AND NON-DISPARAGEMENT

10.1 Strict Confidentiality. The Artist shall keep the financial terms of this Agreement strictly confidential and shall not disclose the Headline Fee or Agency Deduction to any third party (other than his tax advisor or legal counsel).

10.2 Perpetual Non-Disparagement. The Artist shall not at any time during or after the termination of this Agreement make any statement (whether online, in interviews, or in song lyrics) that criticizes or disparages the Company, its products, or its advertising agencies.

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11. GOVERNING LAW AND DISPUTE RESOLUTION

11.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of Kenya.

11.2 Binding Arbitration. Any dispute arising out of or in connection with this Agreement shall be referred to final and binding arbitration in Nairobi by a single arbitrator appointed by the Chairman of the Chartered Institute of Arbitrators (Kenya Branch). Each Party shall advance fifty percent (50%) of the arbitrator's deposit prior to the hearing, failing which the defaulting Party's claim or defence shall be struck out.

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12. MISCELLANEOUS

12.1 Assignment. The Company may freely assign or sub-license its rights under this Agreement to any affiliate, distributor, or successor company. The Artist may not assign or subcontract any obligation hereunder.

12.2 Entire Agreement. This Agreement and Schedule A supersede all prior negotiations or WhatsApp correspondence between the Parties.

SCHEDULE A: DELIVERABLES AND CAMPAIGN OBLIGATIONS

1. Original Campaign Anthem: Writing, producing, and delivering one (1) sixty-second (60-second) master quality song and three (3) cut-downs (30s, 15s, and 10s sting) incorporating the vocal hook "Feel the Kibo Volt Rush".

2. Commercial Shoot: Two (2) full production days (up to 14 hours per day) in Nairobi and Naivasha for television and billboard photography.

3. Regional Roadshow Appearances: Three (3) promotional mall and campus activation appearances in Nairobi, Nakuru, and Eldoret (up to 4 hours per activation, including a 20-minute performance set).

4. Social Media Posting Schedule:

   - Six (6) Instagram Reels/Posts, six (6) TikTok videos, and twelve (12) Instagram Stories over the 6-month Initial Term;

   - Pinning the main "Kibo Volt" campaign video to the top of the Artist's Instagram and TikTok profiles for sixty (60) consecutive days.

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement on the Effective Date first written above.

SIGNED for and on behalf of KIBO BEVERAGES EAST AFRICA LIMITED:

Signature: _____

Name: Rajesh Patel

Title: Regional Commercial Director

Date: 12th November, 2026

SIGNED by the ARTIST:

Signature: _____

Name: JOHN DOE (p/k/a "John Doe")

Date: 12th November, 2026